

## Sri Debajuti Kar vs Smt. Depika Dey (Kar) on 29 June, 2026

2026:THC:793-

TRHC010006122025

HIGH COURT OF TRIPURA

AGARTALA

MAT App. No.13 of 2025

Sri Debajuti Kar, S/o: Sri Ratan Kumar Kar, resident of East Mirza, P.S.  
Kakraban, Udaipur, Gomati Tripura.

..... Appellant (s).

VERSUS

Smt. Depika Dey (Kar), W/o Sri Debajuti Kar, C/o Sri Jiban Dey, resident of  
East Palatana, P.S. Kakraban, Udaipur, Gomati Tripura.

..... Respondent(s).

For Appellant(s) : Mr. Agniva Chakrabarti, Advocate Mr. Samar Das, Advocate For Respondent(s) :  
Mr. Arjun Acharjee, Advocate HON'BLE THE CHIEF JUSTICE MR. M.S. RAMACHANDRA RAO  
HON'BLE MR. JUSTICE BISWAJIT PALIT CAV reserved on : 18.06.2026.

Judgment delivered on : 29.06.2026

Whether fit for reporting : YES/NO

JUDGMENT & ORDER

(Biswajit Palit, J)

This appeal under Section 19(1) of the Family Courts' Act read with Section 28 of the Hindu Marriage Act, 1955 is preferred challenging the judgment dt. 28.02.2025 and decree dt. 04.03.2025 passed by Learned Judge, Family Court, Udaipur, Gomati Tripura, in connection with case No. Title Suit (RCR) 42 of 2022.

2. Heard Learned Counsel, Mr. Agniva Chakrabarti appearing on behalf of the appellant-husband. Also heard Learned Counsel Mr. Arjun Acharjee appearing on behalf of the respondent-wife.

3. At the time of hearing, Learned Counsel for the appellant- husband submitted that the present appellant-husband had filed one petition for restitution of conjugal rights against the respondent-wife on the ground that she had voluntarily deserted his company and raised some wild allegations against his father i.e. the father-in-law of the respondent-wife along with some other allegations.

Learned Counsel further submitted that after few years of marriage, the respondent-wife started misbehaving with the appellant-husband and was reluctant to do household chores. It is further submitted that the respondent-wife developed some unholy relation with some other person and left her matrimonial home. A Local Salishi was held in this regard and the appellant-husband took initiative to bring her back, but she refused. Thereafter, the respondent-wife filed a criminal case

against the appellant- husband which finally ended in acquittal. It is further submitted by Learned Counsel for the appellant-husband that before the Learned Trial Court, the appellant-husband adduced oral evidence of 4(four) numbers of witnesses and the respondent-wife adduced 2(two) numbers of witnesses, but the Learned Trial Judge did not consider the evidence on record of the appellant-husband and dismissed the petition for which the interference of this Court is required.

Learned Counsel for the appellant-husband again submitted that the Learned Trial Judge, without considering the evidence on record, simply on the basis of the acquittal of the appellant-husband in the criminal case, and stating that the withdrawal of the respondent-wife from the society of the appellant-husband cannot be termed entirely unreasonable, dismissed the petition for restitution of conjugal rights. So, Learned Counsel urged for setting aside the judgment dt. 28.02.2025 and decree dt. 04.03.2025 passed by the Learned Trial Court.

4. We have perused the record of the Learned Trial Court including the impugned judgment and decree delivered by the Learned Trial Court.

5. For the sake of brevity, let us discuss hereinbelow the fact of the case as pleaded by the appellant-husband:

The appellant-husband and the respondent-wife were married on 15.12.2015 according to Hindu rites and customs. After marriage, they started living together as husband and wife, but after a few years of marriage, the respondent-wife allegedly started misbehaving with him, abusing him, neglecting household responsibilities, and treating him with cruelty. Despite several conciliatory meetings held in the presence of relatives, well-wishers, and members of the East Mirza Gram Panchayat, the disputes could not be resolved.

The appellant-husband further alleged that the respondent-wife maintained an illicit relationship with an unknown person and frequently communicated with him over mobile phone. In an attempt to preserve the marital relationship, the appellant-husband shifted with the respondent-wife to a rented house; however, according to him, the respondent-wife remained unwilling to lead a peaceful conjugal life.

It was further alleged that on 16.03.2022 at about 06:30 pm, in the absence of the appellant-husband, the respondent-wife left the rented house without any intimation and took away certain gold ornaments. Thereafter, she started residing at her parental home and allegedly refused to return to the matrimonial home despite repeated requests made by the appellant-husband, his family members, and members of the Gram Panchayat.

Consequently, the appellant-husband instituted the petition for restitution of conjugal rights before the Learned Trial Court.

6. Upon receipt of notice, the respondent-wife appeared and contested the proceeding by filing a written statement.

She denied the allegations and contended that she had been subjected to physical and mental torture by the appellant-husband and his father and was ultimately driven out from the matrimonial home. She also lodged a criminal complaint under Section 498A of IPC numbered as PRC (WP) 137 of 2022 against the appellant-husband. However, by judgment dated 30.08.2024, the appellant-husband was acquitted of the charge under Section 498A of IPC by the Learned Judicial Magistrate 1st Class, Udaipur, Gomati District.

7. It is the case of the appellant-husband that before the Learned Trial Court, the appellant-husband adduced 4(four) numbers of witnesses and the respondent-wife adduced 2(two) numbers of witnesses but the Learned Trial Judge did not consider the evidence on record of the appellant-husband and dismissed the petition for restitution of conjugal rights. Being dissatisfied with the said judgment, the present appellant-husband has filed this appeal before this Court.

8. Learned Counsel for the respondent-wife submitted that before the Learned Trial Court, the respondent-wife also contested the case by filing written objection denying the assertions of the appellant-husband. It is further submitted that before the Learned Trial Court, the respondent-wife took the plea that at her matrimonial home, she was subjected to mental and physical cruelty both by the appellant-husband and his family members. The respondent-wife also took the plea that on 16.07.2019, at about 03:00 pm, in absence of the appellant-husband and his family members, her father-in-law entered into her bedroom and tried to rape and molest her. The respondent-wife also stated that at the instigation of her father-in-law, the appellant-husband demanded Rs.2,00,000/- and as she could not fulfill the demand, she was subjected to physical assault and finally she was driven out from their house. Learned Counsel for the respondent-wife submitted that finding no other alternative, the respondent-wife took shelter at her father's house and filed a criminal case.

9. As already stated, the appellant-husband has adduced four numbers of witnesses and the respondent-wife adduced two numbers of witnesses before the Learned Trial Court.

10. The witnesses of the appellant-husband tried to support the case of the appellant-husband but the appellant-husband by adducing evidence could not raise any ground to disbelieve the case of the respondent-wife. The appellant-husband also failed to satisfy the Learned Court below that the respondent-wife, without any basis, withdrawn herself from the society of the appellant-husband. Rather, from the evidence on record of the respondent-wife it appears that there were sufficient grounds and reasons for her to stay away from her matrimonial home.

In course of hearing of argument, Learned Counsel for the appellant-husband failed to satisfy this Court as to why the judgment of the Learned Trial Court should be interfered with.

On perusal of the judgment and decree of the Learned Trial Court further it appears that the Learned Trial Court has clearly explained as to why the respondent-wife was compelled to stay away from her matrimonial home.

11. Furthermore, the judgment of a criminal case is irrelevant for decision of a civil case like the petition for restitution rights as allegedly filed by the appellant-husband against the respondent-wife

in view of the provision of the Section 43 of the Indian Evidence Act.

12. Moreso, from the evidence on record it appears that there were strong reasons for the respondent-wife to stay away from her matrimonial home and as such, in our considered view, the Learned Trial Court, after careful consideration of the evidence on record, has rightly dismissed the petition filed by the appellant-husband for granting decree of restitution of conjugal rights.

13. In the result, we find no merit in the appeal and accordingly, the same stands dismissed. No order is passed as to costs.

Send down the record to the Learned Trial Court along with a copy of this judgment and order.

All pending application(s), shall stand closed.

(BISWAJIT PALIT, J)

(M.S. RAMACHANDRA RAO, CJ)

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